

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA-CGM (AMERICA) LLC, *Respondent*.

**DOCKET NO. 18-07**

Served: February 26, 2019

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**BEFORE:** Clay G. GUTHRIDGE, *Administrative Law Judge*.

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**Order Establishing Discovery Schedule**

On September 5, 2018, the Commission issued a Notice of Filing of Complaint and Assignment (Notice) for this proceeding. The Commission assigned the proceeding to the Office of Administrative Law Judges with instructions to issue an initial decision by September 6, 2019. *Marine Transport Logistics, Inc., v. CMA-CGM (America) LLC*, FMC No. 18-07 (FMC Sept. 5, 2018) (Notice of Filing of Complaint and Assignment). Respondent CMA-CGM (America) LLC filed its Answer on September 26, 2018.

This proceeding has been stayed to permit the parties to engage in mediation through the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS). The order granting the second joint motion to stay provided that:

If the parties have not reached a settlement by January 31, 2019, on or before February 15, 2019, the parties must file a joint status report with a proposed schedule that will allow issuance of an initial decision on or before September 6, 2019. *See* Initial Order page 1. If the parties are not able to schedule the in person mediation session with CADRS before January 31, 2019, the parties may schedule the session for a date after January 31, 2019, but must still comply with the order to submit the proposed schedule on or before February 15, 2019.

*Marine Transport Logistics, Inc., v. CMA-CGM (America) LLC*, FMC No. 18-07 (ALJ Dec. 20, 2018) (Order Granting Second Joint Motion to Stay Proceedings).

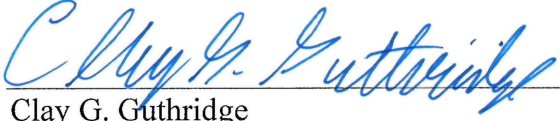
On February 15, 2019, the parties filed a Joint Status Report, Joint Motion for an Additional Fourteen Day Stay, & Proposed Discovery Plan. The parties first request an additional fourteen calendar day stay "to allow finalizing all the terms of the proposed settlement." (Joint Status Report, Etc., at 1.) This request suggests that the parties are close to reaching a settlement and want to ensure that they will be permitted to submit it even though it was not finalized before January 31, 2019, or February 15, 2019. Because the parties may settle the proceeding at any time before an initial decision by the administrative law judge or a final

agency decision by the Commission, I do not find it necessary to stay the proceeding for this purpose. If the parties finalize a settlement, it may be submitted at any time before the issuance of a final agency decision by the Commission. *See* 46 C.F.R. § 502.72(a)(3) (“*By order of the presiding officer.* Except as provided in paragraphs (a)(1) and (a)(2) of this section, an action may be dismissed at the complainant's request only by order of the presiding officer, on terms the presiding officer considers proper. If the motion is based on a settlement by the parties, the settlement agreement must be submitted with the motion for determination as to whether the settlement appears to violate any law or policy and to ensure the settlement is free of fraud, duress, undue influence, mistake, or other defects which might make it unapprovable. Unless the order states otherwise, a dismissal under this paragraph is without prejudice.”).

The parties also propose a joint discovery schedule irrespective of whether the proceedings are granted an additional stay. This proposal is entered as an order.

1. Initial disclosures have been exchanged.
2. Initial discovery requests and notices of deposition must be served by March 15, 2019.
3. Responses to discovery requests must be served by April 15, 2019.
4. Depositions of all witness must be completed on or before May 30, 2019.

I note that if the parties are able to finalize the settlement within the fourteen days contemplated by their stay request, the parties will not need to take any action contemplated by this schedule.

  
Clay G. Guthridge  
Administrative Law Judge